

HOUSE No. 5308

Substituted by the House, on motion of Mr. Walsh of Peabody, for a bill with the same title (House, No. 4414). March 25, 2026.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the town administrator of the town of Carlisle.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. (a)(1) Notwithstanding any general or special law to the contrary, the select
2 board of the town of Carlisle, as the chief executive officer of the town, shall appoint and may
3 remove a town administrator.

4 (2) The town administrator shall be the primary agent of the select board and shall be
5 responsible for managing the daily municipal operations at the direction of the select board.

6 (3) The town administrator shall not be a policy creating position and shall not have the
7 authority to create or set policy independent of the select board's approval or authorization, nor
8 may they do so on behalf of other town officials or multiple member bodies.

9 (4) The provisions of this subsection shall not transfer or otherwise delegate the authority
10 of the select board or any other town officials or multiple-member bodies to the town
11 administrator.

(b)(1) The town administrator, subject to the provisions of the town of Carlisle's duly adopted personnel policies, shall have the authority to appoint, discipline and remove all employees of the town except as limited by this subsection.

(2) The select board of the town of Carlisle shall appoint and may remove: (i) chief of police; (ii) chief of the fire department; (iii) town clerk; (iv) treasurer; (v) tax collector; and (vi) town counsel.

(3) Employees of the town of Carlisle's: (i) public schools; (ii) fire department; (iii) Gleason public library; and (iv) board of health shall be appointed, removed and managed by the town of Carlisle's school committee or superintendent, chief of the fire department, library trustees or director of the Gleason public library or board of health respectively.

(c)(1) Where any employee of the town of Carlisle shall be responsible for assisting the operations of an elected or appointed town of Carlisle official or multiple-member body, the town administrator shall consult with such town official or multiple member body prior to making an appointment or removal under this subsection.

(2) In the event of a vacancy, disability or absence anticipated to be greater than 30 days of any appointed town official or town employee, the town administrator may appoint another person to serve in an acting or interim capacity for the period of such vacancy, disability or absence.

(d) The town administrator shall supervise and manage the employees, operations and staff resources of all the town of Carlisle departments, except for employees of the town's: (i) school department; (ii) fire department; (iii) Gleason public library; (iv) and board of health. In their supervisory and managerial capacity, the town administrator shall ensure efficient operation

34 of all the town departments and facilities by implementing the policy directives of the select
35 board of the town of Carlisle or other town officials or multiple member bodies as applicable.

36 (e) The town administrator shall perform such other duties as directed by select board of
37 the town of Carlisle pursuant to the select board's policies.

38 SECTION 2. This act shall take effect upon its passage.